

Court No. - 37

Case :- WRIT - C No. - 64093 of 2012

Petitioner :- Govind Singh

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Vijay Singh Kushwaha

Respondent Counsel :- C.S.C.

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

Sri A.L.Yadav, learned counsel appearing for respondent no.5 prays for time to obtain instruction in the matter.

Put up on Monday, i.e., 17.12.2012 as fresh.

Order Date :- 10.12.2012

SKM

Court No. - 37

Case :- WRIT - C No. - 64093 of 2012

Petitioner :- Govind Singh

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Vijay Singh Kushwaha

Respondent Counsel :- C.S.C.,Amrit Lal Yadav

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

Sri A.L. Yadav, learned counsel appearing for the respondent no. 5 is granted three weeks' time to file a counter affidavit. List thereafter.

The petitioner's case in the writ petition is that his electricity connection was permanently disconnected and a permanent disconnection certificate has also been issued, copy of which has been brought on record. Learned counsel for the petitioner submits that all the electricity dues were paid and thereafter now citation dated 20.10.2012 has been issued. Submissions need scrutiny.

In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned citation dated 20.10.2012.

Order Date :- 17.12.2012

LA/-

Court No. - 35

Case :- WRIT - C No. - 64093 of 2012

Petitioner :- Govind Singh

Respondent :- State Of U.P. Thru Secy. And Others

Counsel for Petitioner :- Vijay Singh Kushwaha

Counsel for Respondent :- C.S.C.,Amrit Lal Yadav

Hon'ble Bharati Sapru,J.

Hon'ble Saral Srivastava,J.

Learned counsel for the petitioner prays for and is allowed two weeks' and no more time to file rejoinder affidavit.

List thereafter.

Order Date :- 18.4.2018

pks

Court No. - 35

Case :- WRIT - C No. - 64093 of 2012

Petitioner :- Govind Singh

Respondent :- State Of U.P. Thru Secy. And Others

Counsel for Petitioner :- Vijay Singh Kushwaha

Counsel for Respondent :- C.S.C.,Amrit Lal Yadav

Hon'ble Bharati Sapru,J.

Hon'ble Saral Srivastava,J.

Rejoinder Affidavit filed today is taken on record.

List in the next cause list showing the name of Sri Baleshwar Chaturvedi as counsel for the respondents.

Order Date :- 9.5.2018

S.P.

Court No. - 3

Case :- WRIT - C No. - 64093 of 2012

Petitioner :- Govind Singh

Respondent :- State Of U.P. Thru Secy. And Others

Counsel for Petitioner :- Vijay Singh Kushwaha

Counsel for Respondent :- C.S.C., Amrit Lal Yadav, Baleshwar
Chaturvedi, Shrawan Kumar Tripathi

Hon'ble Pankaj Kumar Jaiswal, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

Heard Sri Vijay Singh Kushwaha, learned counsel for the petitioner, Sri Shrawan Kumar Tripathi, learned counsel appearing for respondent no.5 and Sri Raghvendra Kumar Srivastava, learned Standing Counsel appearing on behalf of respondent nos.1 to 4.

By this writ petition the petitioner has assailed the demand of recovery made by respondent no.5 on the ground that no opportunity of hearing has been provided nor any details have been provided, as to how the amount of Rs.76,251/- has been arisen.

A counter affidavit has been filed on behalf of respondent no.5 wherein it has been stated that as per clause 6.5 of the Electricity Supply Code, 2005 the petitioner has statutory remedy available to him in case of any dispute with regard to the demand.

In view of the aforesaid, at this stage, we are not inclined to interfere in this writ petition. However, liberty is granted to the petitioner to challenge the demand by filing an appropriate application under clause 6.5 of the Code, 2005 before the authority concerned. In case such an application is filed within 30 days from the date of receipt of a certified copy of this order the same shall be decided expeditiously, without granting any unnecessary adjournment.

In view of the aforesaid observations the writ petition is disposed of.

Order Date :- 8.2.2019

Shahroz

(Dr. Y.K. Srivastava, J.) (Pankaj Kumar Jaiswal, J.)